

# M/S Abhinav Steels Ltd. v. Purvanchal Vidyut Vitaran Nigam Ltd. & 2 Others

Allahabad High Court · Division Bench · 6 March 2018 · Writ - C No. 62779 of 2015 · **Writ petition dismissed on the ground of alternative remedy; petitioner relegated to Clause 6.5 of the Electricity Supply Code, 2005 and, if full relief is not obtained, to the Ombudsman**

## HEADNOTE

Where a consumer writ challenges electricity bills demanding charges, and after argument counsel cannot dispute that the U.P. Electricity Supply Code, 2005 furnishes a statutory alternative remedy of raising the billing dispute before the District Redressal Forum under Clause 6.5, with a further remedy before the Ombudsman if full relief is not obtained, the High Court will not entertain the dispute relating to electricity charges in extraordinary jurisdiction under Article 226. The writ petition is dismissed on the ground of alternative remedy and the consumer is relegated to that statutory route. The Court did not examine the correctness or quantum of the bills.

## FACTUAL SUMMARY

M/S Abhinav Steels Ltd. filed Writ-C No. 62779 of 2015 in the Allahabad High Court against Purvanchal Vidyut Vitaran Nigam Ltd. and two others, challenging electricity bills by which the distribution licensee demanded electricity charges. The petition was listed from December 2015. On 14 December 2015 the licensee was given three weeks to file a counter-affidavit to the writ petition and a supplementary affidavit, with a rejoinder thereafter. After adjournments through 2017, a rejoinder was taken on record on 30 November 2017. When the matter was heard on 6 March 2018, counsel for the petitioner, after some argument, did not dispute that a statutory alternative remedy existed for disputing those bills.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.5

disputed electricity bills — writ barred by statutory alternative remedy

#### QUESTION

Is a writ petition disputing electricity charges maintainable under Article 226 when Clause 6.5 of the U.P. Electricity Supply Code, 2005, and a further Ombudsman remedy, are available?

#### HOLDING

No. After some argument, counsel for the petitioner could not dispute that the consumer has a statutory alternative remedy of disputing electricity bills demanding charges by raising the dispute before the District Redressal Forum under Clause 6.5 of the Electricity Supply Code, 2005, and, if full relief is not obtained, a further remedy before the Ombudsman. A dispute relating to electricity charges is not to be entertained in extraordinary jurisdiction under Article 226; the petitioner must be relegated to that statutory remedy. The writ petition is dismissed on the ground of alternative remedy. ¶ 1-3

#### QUALIFIER

Counsel for the petitioner did not dispute the existence of the statutory alternative remedy after some argument.

**FLAG** The Court described Clause 6.5 as the 'District Redressal Forum' with a further Ombudsman remedy. In the U.P. Electricity Supply Code, 2005, Clause 6.5 is the billing-complaint route (typically representation to the Executive Engineer); the Consumer Grievance Redressal Forum and Ombudsman sit in a different chapter (typically Clause 7.10). Recorded as the Court stated it. Source PDF compiles listing orders of 7.12.2015–22.12.2017 and this 6.3.2018 disposal (Sudhir Agarwal and Shashi Kant, JJ.). Pins are numbered paragraphs of the 6.3.2018 disposal.

**clause-6.5-alternate-remedy-to-writ**

The writ challenging electricity bills was dismissed, not decided on merits, because Clause 6.5 was treated as a statutory alternative remedy that bars Article 226. ¶ 1-3

**clause-6.5-statutory-remedy-disputed-bill**

The Court treated Clause 6.5 as the Code route for disputing electricity bills issued by the distribution licensee demanding electricity charges. ¶ 1

**alternative-remedy-supply-code-cgrf-ombudsman**

The Court described the Clause 6.5 forum as the District Redressal Forum, with a further remedy before the Ombudsman if full relief is not obtained, and declined writ jurisdiction on that composite statutory route. ¶ 1-2

#### NOT DECIDED — NEGATIVE AUTHORITY

##### NOT DECIDED — CORRECTNESS AND QUANTUM OF THE ELECTRICITY BILLS / ELECTRICITY CHARGES DEMANDED BY THE LICENSEE

The writ was dismissed on alternative remedy without examining the bills on merits. ¶ 1-3

---

SCJ-3163 · M/S Abhinav Steels Ltd. v. Purvanchal Vidyut Vitaran Nigam Ltd. & 2 Others · · Supply Code Jurisprudence

*A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.*